

25STCV38192 25STCV38192

County: los-angeles

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Case Number: 25STCV38192 Hearing Date: July 28, 2026 Dept: 732

Mariano Lazzaro v. Westdetail LLC, et al.

Tuesday, July 28, 2026

CASE NUMBER: 25STCV38192

OPPOSED

Plaintiff Mariano Lazzaro's Motions to Compel Further Responses to Requests for Admissions and Requests for Production from Defendant Westdetail, LLC

Facts: This is an action for employment discrimination, retaliation, and wage-and-hour violations. The Complaint alleges as follows. Plaintiff Mariano Lazzaro ("Plaintiff") is an Italian-Armenian man who worked at the car detailing facility operated by Defendant Westdetail, LLC ("Defendant"). (Complaint ¶¶ 10–12.) Plaintiff was treated less favorably than Hispanic employees at the same facilities, and his complaints regarding safety or working conditions garnered less management response than those of his Hispanic coworkers. (Complaint ¶ 12.) Plaintiff was terminated following complaints about workplace safety. (Complaint ¶¶ 19–20.) Defendant also failed to pay Plaintiff the wages promised, misclassified him as an independent contractor, and failed to provide requisite meal and rest breaks. (Complaint ¶¶ 14–18.)

Procedural History: Plaintiff filed the Complaint on December 29, 2026, alleging 19 causes of action:

FEHA National Origin Discrimination

FEHA Retaliation

FEHA Harassment

Failure to Prevent FEHA Violations

Wrongful Termination

Negligent Hiring and Supervision

Intentional Infliction of Emotional Distress

Labor Code § 1102.5 Retaliation

Labor Code § 98.6 Retaliation

Minimum Wage Violation

Overtime Violation

Meal Period Violation

Rest Break Violation

Non-Reimbursed Business Expenses

Failure to Pay Wages Due on Termination

Inaccurate Itemized Wage Statements

Failure to Maintain Payroll Records

Failure to Provide Employment Records

Unfair Business Practices

Defendant filed on Answer on March 20, 2026.

Plaintiff filed the present motions to compel further on June 9, 2026.

Defendant filed oppositions on July 15, 2026.

Plaintiff filed replies on July 2, 2026.

Analysis:

MOTIONS TO COMPEL FURTHER

A party may file a motion directed to inspection demands where the responses are incomplete, inadequate, or contain invalid objections. (See Code Civ. Proc. § 2031.310, subd. (a).) A motion to compel a further response to an inspection demand must set forth specific facts showing “good cause” justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Unless there is a legitimate privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance. (*TBG Ins. Services Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 444.) Once the moving party demonstrates good cause for the discovery, the burden is on the responding party to justify any objection or failure to fully respond to the inspection demand. (*Coy v Superior Court* (1962) 58 Cal.2d 210, 220.)

A motion to compel further responses to requests for admissions may be made on the grounds that an answer is incomplete or evasive, or an objection is without merit. (Code Civ. Proc. § 2033.290, subd. (a)(1)–(2).)

Plaintiff Mariano Lazzaro (“Plaintiff”) moves to compel further responses to Requests for Production No. 1–40, and Requests for Admission No. 1–35, from Defendant Westdetail, LLC (“Defendant”). Plaintiff argues that each response to Requests for Production No. 1–40 indicated documents were being withheld due to privilege and work product protections, but no privilege log was provided, that the responses to Requests No. 1–3, 5–12, 16, 19–26, 28, 34, 35, and 39, promised responsive production where no production has been made, and further that Requests No. 17, 18, 31, 36, and 37 consisted entirely of non-meritorious privacy objections. (Motion at p. 2.) As to Requests for Admissions, Plaintiff argues that Defendant’s responses consisted entirely of boilerplate and non-meritorious objections. (Motion at p. 2.)

The motions are untimely. Defendant served the responses at issue on March 20, 2026, and the present motions were filed on June 9, 2026, some 81 days later. The time to bring a motion to compel further is generally 45 days after service of responses, or “or any specific later date to which the requesting party and the responding party have agreed in writing.” (See Code Civ. Proc. §§ 2033.290, subd. (c), 2031.310, subd. (c).) Plaintiff presents no evidence of an agreed extension in his motion, and fails to do so in reply, despite Defendant’s objection on this point. (Opposition at pp. 3–4.) Untimely service “renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff in opposition argues that any deadline ought to be tolled for the period in which the parties attempted to engage in an informal discovery conference with this court. (Reply at pp. 3–4.) This argument is unpersuasive, as the present motions were untimely by the time the parties submitted their joint discovery statement on May 13, 2026. Nor is it clear at what point Plaintiff proposes the implied IDC tolling to end, as the IDC was set for May 20, 2026, and the present motion was not filed until June 9, 2026, more than two weeks later. Plaintiff’s proposed extension is thus of indefinite duration. Finally, Plaintiff argues that he should not be punished for engaging in the IDC process. (Reply at p. 1.) But it is the lack of any agreement to extend the motion deadline, let alone a written agreement to extend it to a specific later date, that renders the motions untimely, not the parties’ engagement in the IDC process.

However, in addition to seeking further responses, the motion directed to requests for production also seeks production in compliance with statements of compliance offered by Defendant. (Motion at p. 2.) That motion may therefore be construed in part as one to compel production in line with statements of compliance under Code of Civil Procedure § 2031.320, to which no similar deadline applies. Nor does that statute contain any special procedural requisite not satisfied by the instant motion directed to the requests for production. Plaintiff presents the responses of Defendant, which include the following statement of compliance, subject to objections, in response to Requests No. 1–3, 5–12, 16, 19–26, 28, 34, 35, and 39: “[Defendant] WD will provide all documents in its possession, custody or control which are responsive to this request in the manner in which the same are kept in the normal course of business.” (Burton Decl. Exh. B.) In reply, Plaintiff indicates that this production still has not been made. (Supp. Burton Decl. ¶ 14.) Thus the motion may be granted in this limited respect.

Accordingly, the motion as to requests for production is GRANTED in part, and Defendant is ordered to produce records in compliance with its responses to Requests for Production No. 1–3, 5–12, 16, 19–26, 28, 34, 35, and 39, within 20 days of this order. The motions are otherwise DENIED as untimely. No sanctions are awarded, as the motions are made and opposed

with substantial justification.

Superior Court of California

County of Los Angeles

Department 732

MARRIANO LAZZARO.,

Plaintiff,

v.

WESTDETAIL, LLC., et al.,

Defendants.

Case No.: 25STCV38192

Hearing Date: July 28, 2026

[TENTATIVE] RULING RE:

Plaintiff Mariano Lazzaro's Motions to Compel Further Responses to Requests for Admissions and Requests for Production from Defendant Westdetail, LLC

Plaintiff Mariano Lazzaro's Motions to Compel Further Responses to Requests for Admissions and Requests for Production from Defendant Westdetail, LLC are GRANTED in part as to the requests for production, and Defendant is ordered to produce records in compliance with its responses to Requests for Production No. 1–3, 5–12, 16, 19–26, 28, 34, 35, and 39, within 20 days of this order. The motions are otherwise DENIED as untimely. No sanctions are awarded.

Defendant to provide notice.

Dated: July 28, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court